

Ref No.: BD-ACEPM-SAMCO-LET-027

Date: Sunday, 15<sup>th</sup> of February 2026

To: SAMCO National Construction Company

Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

**Subject: Delay in Submission of Required Breakdown**

**Reference (S):**

1) Employer's Letter Ref. HQ\_ROYA\_LT \_ Contractors\_Tax Value\_017 \_00 dated 16/09/2025

Dear Sir,

Reference is made to the Signed Contract and to the Employer's formal request dated 16/09/2025 Ref. No. 1, in addition to the repeated requests raised during subsequent coordination and progress meetings.

Despite the lapse of a considerable period and several reminders, the Contractor has failed to submit the required detailed breakdown as formally requested by the Employer and discussed in multiple meetings thereafter. Up to the date of this letter, no compliant submission has been received.

Your continued failure to submit the required breakdown is creating serious financial exposure and administrative risk to the Project, and directly impacts the certification and processing of payments and variations. Any delay, rejection, or withholding of amounts due under Interim Payment Certificates resulting from incomplete documentation shall remain solely at the Contractor's risk and responsibility according to Sub-clause 14.6

This letter shall be considered formal notice that unless the required detailed breakdown is submitted within seven (7) days from the date of this letter, the Engineer shall be compelled to take the necessary contractual measures, including but not limited to:

- Deferral or adjustment of payment certification due to lack of substantiation;
- Assessment of non-compliance under Sub-Clause 4.1 (Contractor's General Obligations);
- Reservation of all Employer's rights under Sub-Clause 2.5 and other applicable provisions of the Contract.

This notice is without prejudice to the Employer/Engineer's rights to enforce the Contract's clauses as a result of the delay in having the above requirements properly.



Project Manager,  
ACE Project Management

Attachment(s):

CC:

Eng. Mohamed Hamza - Projects Manager

Eng. Mostafa Gala - Owner representative

Eng. Ahmed Saafan – Project Controls Director

Eng. Ramy Refaat – Commercial Contracts Director

Eng. Osama Waly – PCO representative



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